

Los Angeles Regional Water Quality Control Board

August 1, 2022

Ms. Lysa Gaboudian, Supervising Engineer
County Sanitation Districts of Los Angeles County
Joint Outfall System
1955 Workman Mill Road
Whittier, CA 90601

APPROVAL OF VARIANCE REQUEST FOR THE 2022 LOCAL SEAFOOD SAFETY SURVEY AND LOCAL BIOACCUMULATION TRENDS SURVEY MONITORING AND REPORTING REQUIREMENTS – JOINT WATER POLLUTION CONTROL PLANT (ORDER NO. R4-2017-0180, NPDES NO. CA0053813, CI NO. 1758)

Dear Ms. Gaboudian:

On May 24, 2022, the Los Angeles Regional Water Quality Control Board (Los Angeles Water Board) received a request from the County Sanitation Districts of Los Angeles County (CSDLAC) for temporary modifications of the sampling, tissue analysis, and reporting requirements for (1) White Croaker and Barred Sand Bass under the 2022 Local Seafood Safety Survey and (2) White Croaker under the 2022 Local Bioaccumulation Trends Survey. The Local Seafood Safety Survey and Local Bioaccumulation Trends Survey are both annual requirements in Order No. R4-2017-0180, adopted by the Los Angeles Water Board on September 7, 2017. On June 30, 2022, the Los Angeles Water Board received a revised request from CSDLAC clarifying the fish size requirements in the NPDES permit since the initial letter did not accurately describe the requirements in the current NPDES permit. The requested modifications to the 2022 surveys are described below:

1. Modifications to 2022 Local Seafood Safety Survey

Local Seafood Safety Survey	Permit Requirement	Proposed Modification for 2022
White Croaker Size Range	Consistent Size (2017 Permit, page E34), generally between 170 and 220 mm standard length based on previous permits (2006 and 2011)	No size limit

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Local Seafood Safety Survey	Permit Requirement	Proposed Modification for 2022
Barred Sand Bass Size Range	Consistent Size (2017 Permit, page E35), the Minimum 356 mm, total length according to California Department of Fish and Wildlife Regulation revised on May 16, 2022	Minimum 356 mm, total length
Tissue Analysis	Compositing with 10 fish	Skin-off fillet for individual fish
Sampling Area	Zone 1 (Outfall), Zone 2 (Intermediate), Zone 3 (Distant)	Zones 1, 2, 3 and Breakwater Zone
Analytes	% Moisture, % lipid, Total DDT, DDT derivatives, Total PCB, PCB derivatives, Arsenic, Mercury, Selenium	% Moisture, % lipid, Total DDT, DDT derivatives, Total PCB, PCB derivatives by EPA's contract lab

2. Modifications to Local Bioaccumulation Trends Survey

Local Bioaccumulation Trend Survey	Permit Requirement	Proposed Modification for 2022
White Croaker Size Range	Consistent Size (2017 Permit, page E34), generally between 170 and 220-mm standard length based on previous permits (2006 and 2011)	No size limit
Tissue Analysis	Compositing with 10 fish	Skin-off fillet for between 10-30 individual fish per zone (no compositing)
Sampling Area	Zone 1 (Outfall), Zone 2 (Intermediate), Zone 3 (Distant)	Zones 1, 2, 3 and Breakwater Zone

These modifications will allow for effective and accurate implementation of the approved Special Study (based on Resolution No. R21-005, adopted by this Los Angeles Water Board on May 13, 2021) being conducted jointly between CSDLAC and the United States Environmental Protection Agency (USEPA) in support of the Palos Verdes Shelf

Superfund Site Remediation Project. Los Angeles Water Board staff consulted with the Remedial Project Manager in the USEPA Region IX Superfund and Emergency Management Division, who confirmed that the requested modifications to local seafood survey and bioaccumulation trend survey are appropriate and necessary for the USEPA's Special Study: Palos Verdes Shelf Second Monitored Natural Recovery Study.

Since the requested modifications will be neither complete nor comparable to the historical data, CSDLAC also requests an exemption from reporting analytical results for White Croaker and Barred Sand Bass collected in 2022 as part of CSDLAC's Data Summary and Biennial Receiving Water Monitoring Reports. These analyses per modifications in 2022 will be provided and interpreted in the final report for the Special Study. Per CSDLAC's May 24, 2022 letter, Hornyhead Turbot muscle and liver will still be collected, analyzed, and reported in accordance with the Local Bioaccumulation Trends Survey permit requirements in 2022. Kelp Bass, Black Perch, and a benthic rockfish species will also still be collected, analyzed, and reported in accordance with the Local Seafood Safety Survey permit requirements in 2022. CSDLAC states in the letter that the Local Bioaccumulation Trends Survey and Local Seafood Safety Survey will resume as prescribed in Order No. R4-2017-0180 in 2023 and 2024, respectively.

The Los Angeles Water Board hereby approves the requested modifications described above for the 2022 Local Seafood Safety Survey and the 2022 Local Bioaccumulation Trends Survey, and a temporary exemption of reporting of the analytical results for White Croaker and Barred Sand Bass.

If you have any questions, please contact Don Tsai at Don.Tsai@waterboards.ca.gov or Steven Webb at Steven.Webb@waterboards.ca.gov.

Sincerely,

Renee Purdy
Executive Officer

cc: Ms. Judy Huang, U.S. Environmental Protection Agency, Region IX
Mr. Chi-Li Tang, County Sanitation Districts of Los Angeles County
Ms. Kristie Kao, Los Angeles Regional Water Quality Control Board